



Notification Waiver Determination

KKR – FYihealth group

Acquisition	Frames ExchangeCo Ltd. (Frames Exchange) applied for a notification waiver in respect of its proposed acquisition of the outstanding units in FYi Holdings LP (FYihealth), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	22 July 2026

Parties to the Acquisition	The acquirer, Frames Exchange, is indirectly owned by KKR & Co. Inc (together with its subsidiaries, KKR). KKR is a global investment firm that offers alternative asset management as well as capital markets and insurance solutions. KKR controls 1-800 Contacts, which supplies eyewear products and software for eye care professionals and retailers (including to Australian customers). 1-800 Contacts supplies contact lenses and glasses by shipping directly to consumers. The target, FYihealth, is a diversified healthcare organisation that operates a network of more than 370 optical clinics and retail stores across Canada and the United States. In Australia, FYihealth operates in the supply of eyewear frames through its subsidiary Westgroupe Optical, Inc.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is a small horizontal overlap between the parties in the supply of eyewear products to customers in Australia - there are alternative suppliers of eyewear products in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met.

	Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**